

The Court further finds and orders as follows:

1. The Motion to Disqualify Counsel is **DROPPED FROM CALENDAR** as moot.

12. 9:00 AM CASE NUMBER: C25-03200
CASE NAME: DEMANUEL GROSSE, SR. VS. THE PORTIA BELL HUME CENTER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: THE PORTIA BELL HUME CENTER
TENTATIVE RULING:

Defendant THE PORTIA BELL HUME CENTER filed a Demurrer on February 26, 2026 to the Complaint filed October 30, 2025 by plaintiff. The Demurrer was set for hearing on July 27, 2026. A First Amended Complaint was filed on May 18, 2026. When a plaintiff files an amended complaint in response to a demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2026) (“CJER Civ. Pro.—Before Trial”), § 12.11. Defendant’s Demurrer is ordered OFF CALENDAR as moot.

13. 9:00 AM CASE NUMBER: C26-00053
CASE NAME: JONATHON HEPBURN VS. CONTRA COSTA FARMS, LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CONTRA COSTA FARMS, LLC
TENTATIVE RULING:

Introduction

Defendant Contra Costa Farms, LLC (“Defendants”) filed a Motion to Compel Arbitration seeking an order compelling plaintiff Jonathan Hepburn (“Plaintiff”) to arbitrate all claims asserted in this action pursuant to the binding Arbitration Agreement executed in connection with Plaintiff’s employment with Defendant from approximately September 2023 through July 2024.

The Motion relates to Plaintiff’s Complaint for (1) Race Discrimination in Violation of the Fair Employment and Housing Act (“FEHA”); (2) Retaliation in Violation of the FEHA; (3) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of the FEHA; 4) Whistleblower Retaliation in Violation of Cal. Lab. Code § 1102.5; and (5) Wrongful Termination in Violation of Public Policy.

For the reasons articulated below, the Motion to Compel Arbitration is **DENIED**.

Relevant Facts

Plaintiff was employed with Defendant from September 1, 2023, until his termination on July 3, 2024. (Hepburn Decl. ¶12.)

Plaintiff generally states that he was employed by the entity Contra Costa Farms, LLC, not “CoCo Farms LLC” or “CCF.” (Hepburn Decl. ¶13.) The Court notes that the Severance Agreement defines Contra Costa Farms, LLC as “Employer” or “CCF” in the second line of the Severance and Release Agreement.